

**Tentative Rulings and Resolution Review Hearings**  
**March 10, 2025**  
**Department 63**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; [courtcall.com](http://courtcall.com)) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

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**8:30 a.m. – Law & Motion**

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**BANGHART VS. REDDING APPLIANCE CENTER, ET AL.**

**Case Number: 24CV-0204133**

**Tentative Ruling on Motions to Quash Document Subpoenas for Employment Records:** Plaintiff Travis Banghart (hereinafter "Plaintiff") moves separately for an order quashing or in the alternative modifying Defendant Redding Appliance Center's (hereinafter "Defendant") subpoenas issued to Darrah Logging, Inc. (hereinafter "Darrah") and Apex Enterprises, Inc. (hereinafter "Apex"). Both motions contain nearly identical issues and will therefore be addressed together. Plaintiff also requests sanctions in the amount of \$3,135 for each motion.

Merits of Motion. A party may move for an order quashing a subpoena in its entirety, modifying it or directing compliance. CCP § 1987.1(a). The Court may also make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy. *Id.* A party may obtain discovery related to any matter, if the matter itself is admissible or reasonably calculated to lead to the discovery of admissible evidence. CCP § 2017.010. However, privileged information is not discoverable. CCP § 2017.010.

In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. An implicit waiver of a party's constitutional rights encompasses only discovery *directly relevant* to the plaintiff's claim and essential to the fair resolution of the lawsuit. There must be a compelling and opposing state interest justifying the discovery. Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.

*Davis v. Superior Ct.* (1992) 7 Cal. App. 4th 1008, 1014.

Here, Plaintiff is seeking lost wages based on his various causes of action including wrongful termination. Defendant has alleged affirmative defenses related to a failure to mitigate damages. Accordingly, lost wages are

directly relevant to this action and Plaintiff has waived any privacy rights to these particular employment records. *Id.* Defendant has sought employment records from two of Plaintiff's subsequent employers. The subpoena seeks Plaintiff's personnel file, payroll records, benefit records, training and certification records and attendance records. Defendant has established good cause as to the payroll and benefit records. Their request is also narrowly tailored to the circumstances and appears to be the least intrusive manner of getting this information. The Court will order the subpoena to proceed as to the payroll and benefit records.

The remaining categories related to Plaintiff's personnel file, training and certification records and attendance records are not directly relevant to this proceeding. *Id.* These records would not show lost wages and are not directly relevant to this proceeding. Defendant takes the position that these records would relate to mitigation but that arguments lacks merit. Even if Defendant had sufficiently established their relevance, the information can be obtained through less intrusive means. For example, Defendant has provided excerpts from Plaintiff's deposition which shows that he testified to his efforts to mitigate damages by working for both employers subject to the subpoenas and by seeking other employment as well. The Court will modify the subpoenas to remove the requests for the personnel file, training and certification records and attendance records.

Sanctions: Plaintiff has requested sanctions on the grounds that Defendant's pursuit of the records is a misuse of the discovery process. CCP § 2023.030(a). While the Court will limit the scope of the subpoena, it does not find that a misuse of the discovery process has occurred. Sanctions will not be awarded.

The requests to quash the subpoenas is **DENIED**. The request to modify the scope of the subpoenas is **GRANTED**. The Court will limit the scope of both subpoenas only to the categories of payroll and benefit records. The request for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.

**Tentative Ruling on Motion to Quash Document Subpoena for Medical Records:** Plaintiff Travis Banghart (hereinafter "Plaintiff") moves for an order quashing or in the alternative modifying Defendant Redding Appliance Center's (hereinafter "Defendant") subpoena issued to Docs Medical Group, Inc. (hereinafter "DMG"). Plaintiff also requests sanctions in the amount of \$3,135.

Merits of Motion. A party may move for an order quashing a subpoena in its entirety, modifying it or directing compliance. CCP § 1987.1(a). The Court may also make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy. *Id.* A party may obtain discovery related to any matter, if the matter itself is admissible or reasonably calculated to lead to the discovery of admissible evidence. CCP § 2017.010. However, privileged information is not discoverable. CCP § 2017.010.

In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. An implicit waiver of a party's constitutional rights encompasses only discovery *directly relevant* to the plaintiff's claim and essential to the fair resolution of the lawsuit. There must be a compelling and opposing state interest justifying the discovery. Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.

*Davis v. Superior Ct.* (1992) 7 Cal. App. 4th 1008, 1014.

Here, Plaintiff's causes of action for wrongful termination, disability discrimination, failure to engage in interactive process etc. are all factually predicated on his disability, a hernia. Defendant is attempting to subpoena medical records from the medical provider that diagnosed the hernia and referred Plaintiff to a surgeon that Plaintiff has been unable to identify. Plaintiff has right of privacy in his medical records. See *Grafilo v. Wolsohn* (2019) 33 Cal.App.5<sup>th</sup> 1024, 1034. However, by filing the present suit he has waived any right in this records that are directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. *Davis, supra* 7 Cal.App.4<sup>th</sup> at 1014. The Court has reviewed the scope of the subpoena and finds that it seeks records directly relevant to Plaintiff's claims. The Court also finds that there is not a less intrusive means to obtain this information. The request to quash or modify the subpoena is denied.

Sanctions: Plaintiff has requested sanctions against Defendant based on alleged misuse of the discovery process. CCP § 2023.030(a). The Court is denying the request to quash and therefore no misuse has occurred. Defendant has also requested sanctions, alleging the present motion was brought in bad faith. While Defendant has ultimately prevailed in opposing the motion, the Court does not find that it was brought in bad faith. Sanctions will not be awarded.

The motion is **DENIED**. The requests for sanctions is **DENIED**. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.

#### **IN RE: BELL**

**Case Number: 24CV-0206587**

**Tentative Ruling on Petition for Change of Name:** Petitioner Jacqueline Nicole Bell seeks to change her name to Jacqueline Nicole Wagner. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

#### **BURBANK VS. STATE OF CALIFORNIA, ET AL.**

**Case Number: 24CV-0204945**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued on January 29, 2025 to Plaintiff Tina Burbank for her failure to timely serve the Complaint and Summons on defendants pursuant to CRC 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on May 8, 2024, and no Proof of Service of Summons has been filed. Plaintiff has not filed a written response to the Order to Show Cause.

The Court finds that Plaintiff has violated CRC 3.110(b). With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250.00 against Plaintiff. The clerk is instructed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, April 21, 2025 at 8:30 a.m. in Department 63**. The clerk is directed to issue the Order to Show Cause Re: Dismissal. The matter will be on calendar on **Monday, April 21, 2025 at 9:00 a.m. in Department 63** for review regarding status of service. The Court expects the matter to be served prior to the next hearing and proof of service filed with the court.

#### **GUILES VS. FOX, MD, ET AL.**

**Case Number: 23CV-0202397**

**Tentative Ruling on Motion for Summary Judgment:** Defendants Robert C. Fox, M.D. and Robert C. Fox, M.D., Inc. move for summary judgment in this medical malpractice action. Plaintiff Meryl L. Guiles filed an Opposition.

Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(o). The scope of the defendant's initial burden is defined by the pleadings. See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.

In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence. *Powell v. Kleinman* (2007) 151 Cal. App. 4th 112, 122. The standard of care against which the acts of a medical practitioner are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can be proved only by expert testimony, unless the conduct required by the particular circumstances is within the common knowledge of laymen. *Massey v. Mercy Medical Center Redding* (2009) 180 Cal. App. 4th 690.

That being said, the Court is not to simply rubber stamp expert declarations. Expert witnesses normally testify concerning the bases for their opinions, and the Court may require the expert to state the bases before giving his opinion. *Kelley v. Trunk* (1998) 66 Cal. App. 4th 519, 523. An expert's opinion, even if uncontradicted, may be rejected if the reasons given for it are unsound. *Ibid.* Even where an opinion is supported, the Court sitting in the summary judgment context must pay close attention to any opposing opinion given by a well-credentialed expert in order to determine whether there is a triable issue of material fact. *Ibid.* It is not the Court's role in summary judgment to decide which expert's opinion is correct, but to determine whether or not the opinions being offered are substantiated by reason. See *Ibid.*

Here, the element of duty is not in dispute. Dr. Fox contests the sufficiency of the evidence to show a breach of the duty to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise. In support of his motion, Dr. Fox proffered a series of undisputed material facts. While Plaintiff filed an Opposition, no Separate Statement was submitted by Plaintiff.

In support of his motion, Dr. Fox has presented the Declaration of Neil Friedman, M.D. Dr. Friedman provided his C.V. which provides sufficient evidence of his expertise in this area of medicine. The Court notes that Plaintiff did not challenge the qualifications of Dr. Friedman.

Dr. Friedman performed a review of the medical records as well as a review of the allegations in Plaintiff's Complaint. *Dec. Friedman*, ¶ 5. Dr. Friedman accurately recited the evidence presented in the medical records from both Dr. Fox and follow-up providers. *Id.*, ¶ 6. Dr. Friedman opined that Dr. Fox complied with the standard of care in all respects in his care and treatment of Plaintiff. *Id.*, ¶ 8. Dr. Friedman provided the bases of his opinion. *Id.*, ¶ 9.

The expert declaration appropriately describes the applicable standard of care, as required by *Doe v. Good Samaritan Hosp.* (2018) 23 Cal. App. 5th 653, 664-665. The expert has ample experience and has reviewed the pertinent records to provide his opinions. The Court finds that Dr. Friedman has provided competent medical testimony sufficient to negate Plaintiff's allegations that Dr. Fox failed to meet the standard of care.

The burden thus shifts to Plaintiff to present evidence of a disputed material issue of fact. See *Browne v. Turner Construction Co.* (2005) 127 Cal. App. 4th 1334, 1339–1340. Generally, in the realm of medical malpractice cases, this is accomplished by plaintiffs submitting their own expert’s opinions regarding the standard of care, thus paving the road for the classic “battle of the experts.” Plaintiff has presented no expert testimony to negate the opinion of Dr. Friedman. The only evidence provided by Plaintiff is her own declaration to which Plaintiff attached medical records and text messages. This evidence does not raise a triable issue of material fact. The Court notes that Plaintiff alleges that fraud was committed with respect to her medical records, however, fraud is not alleged in the Complaint.

“ ‘The purpose of a summary judgment proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute.’ [Citation.] ‘The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.’ [Citations.] The complaint measures the materiality of the facts tendered in a defendant’s challenge to the plaintiff’s cause of action. [Citation.]” (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381, 282 Cal.Rptr. 508.) A “plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. [Citation.]” (*Government Employees Ins. Co. v. Superior Court* (2000) 79 Cal.App.4th 95, 98–99, fn. 4, 93 Cal.Rptr.2d 820.) A plaintiff wishing “to rely upon unpleaded theories to defeat summary judgment” must move to amend the complaint before the hearing. (*Leibert v. Transworld Systems, Inc.* (1995) 32 Cal.App.4th 1693, 1699, 39 Cal.Rptr.2d 65; see also *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18, 272 Cal.Rptr. 227.)

*Knapp v. Doherty* (2004) 123 Cal. App. 4th 76, 90.

Therefore, any issues of alleged fraud are not properly before the Court. The Court finds that there is no triable issue of material fact as to the breach of the duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise.

The Motion for Summary Judgment is **GRANTED**. Defendants provided a proposed Order that will be executed by the Court. Today’s Mandatory Settlement Conference and the trial date of April 15, 2025 are vacated. The matter will be on calendar on **Monday, April 28, 2025 at 9:00 a.m. in Department 63** for status of judgment. Defendants are to submit a proposed judgment consistent with the Court’s ruling. The future hearing date will vacated if judgment is entered prior to the hearing.

#### **JAJUGA, ET AL. VS. FCA US LLC**

**Case Number: 24CV-0205061**

**Tentative Ruling on Motions to Compel Further Responses:** Plaintiffs Ashley Jajuga and Cindy Jajuga move to compel Defendant FCA US, LLC to provide further responses to Special Interrogatories and Requests for Production of Documents. Replies are required to be filed at least five court days before the hearing. Plaintiffs filed their replies on March 5, 2025, only two court days prior to the hearing. Based on the late filings and to ensure that both the Court and the Defendant have sufficient time to review the late filed replies, both motions are continued one week to **Monday, March 17, 2025, at 8:30 a.m. in Department 63**. **No appearance is necessary on today’s calendar.**

#### **KING, ET AL. VS. TYNER, ET AL.**

**Case Number: 23CV-0202922**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued January 27, 2025 to Plaintiffs, Christine King and Paul King, and Plaintiff’s Counsel for failure to appear at the January 21, 2025 hearing and failure to provide the Court with a status update. Plaintiffs submitted a Request for Dismissal, subsequently filed by the clerks and entered on January 17, 2025, dismissing the entire action of all

parties and all causes of action without prejudice. Defendants have not yet appeared in the action. The Order to Show Cause is **DISCHARGED. No appearance is necessary on today's calendar.**

**MOOK, ET AL. VS. JEANTETTE**

**Case Number: 22CV-0200414**

**Tentative Ruling on Motion for Summary Judgment:** Plaintiffs Tina Mook and Steven Mook move for summary judgment on the Complaint filed against Defendant Jacqueline Jeantette on August 9, 2022. Despite being timely noticed, Defendant did not file an Opposition.

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

Plaintiffs' Complaint contains a single cause of action for conversion.

“Conversion is generally described as the wrongful exercise of dominion over the personal property of another.[Citation.] The basic elements of the tort are (1) the plaintiff's ownership or right to possession of personal property; (2) the defendant's disposition of the property in a manner that is inconsistent with the plaintiff's property rights; and (3) resulting damages. [Citation.]” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119, 55 Cal.Rptr.3d 621.) “Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial.” (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066, 80 Cal.Rptr.2d 704.)

*Regent Alliance Ltd. vs Rabizadeh* (2014) 231 Cal. App. 4th 1177, 1181.

In this matter, Plaintiffs' Requests for Admission, Set One were ordered deemed admitted against Defendant on October 21, 2024. Defendant admitted that Plaintiff were guests at her property at the time of the fire that damaged Plaintiffs' property, that Defendant made an insurance claim for the replacement value of Plaintiffs' property, and Defendant kept the insurance proceeds for Plaintiffs' property. Defendant also admitted that Plaintiffs asked her to deliver the \$44,796.86 that was meant to replace their property, but Defendant refused and converted the insurance proceeds for Defendant's own benefit. Finally, Defendant admitted that she has no defense to the claim of Plaintiffs that Defendant converted for her personal benefit \$44,796.86 that was meant to replace Plaintiffs' property.

Plaintiffs have established each element of conversion. The burden shifts to Defendant to show that a triable issue of material fact exists. Defendant did not file an Opposition and has not raised a triable issue of material fact.

The Motion for Summary Judgment is **GRANTED**. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling. The trial date of April 15, 2025 is vacated. The matter will be on calendar for review regarding status of judgment on **Monday, April 28, 2025 at 9:00 a.m. in Department 63**. If a judgment is on file prior to the continued hearing date, the continued hearing date will be vacated.

## **ROBBINS VS. ADVANCED CRISIS SOLUTIONS, INC.**

**Case Number: 24CV-0204925**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued January 29, 2025 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Plaintiff filed a stipulation and order requesting additional time to seek resolution of the case, which was granted by the Court on February 27, 2025. Further, Defendant filed a General Denial and response to the Order to Show Cause on February 27, 2025. In light of the filings submitted by both Plaintiff and Defendant, the Order to Show Cause is **DISCHARGED** as to all parties and counsel. The Court notes the future hearing of June 2, 2025 for Trial Setting Conference. **No appearance is necessary on today's calendar.**

## **WELLS FARGO BANK, N.A. VS. TOWE**

**Case Number: 24CVG-00197**

**Tentative Ruling on Motion for Summary Judgment:** Plaintiff Wells Fargo Bank, N.A. moves for summary judgment on the Complaint filed against Defendant Kevin Towe on February 15, 2024.

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

Plaintiff has presented evidence that Defendant opened a Wells Fargo Credit card, made charges to the card, and stopped paying after June 5, 2023. The Card Agreement and monthly billing statements from January of 2008 through December of 2023 were provided. Per the Court's August 5, 2024 Order, Defendant has been deemed to have admitted the following facts: That Plaintiff issued Defendant a Wells Fargo Credit Card, Defendant was to pay principal the amount charged plus finance charges, only Defendant or those authorized by Defendant used the card, Defendant received monthly statements, no transactions were disputed for any of the monthly billing statements, Defendant owes \$27,647.96, and the last payment was on June 5, 2023.

The Complaint alleges six causes of action:

1. Breach of Written Contract
2. Breach of Implied Contract
3. Common Counts for Money Lent
4. Common Counts for Money Paid
5. Common Counts for an Open Book Account
6. Common Counts for Account Stated.

*Breach of Contract.* A cause of action for breach of contract requires pleading of a contract, the plaintiff's performance or excuse for failure to perform, the defendant's breach, and damage to plaintiff resulting therefrom. *Miles vs. Deutsche Bank National Trust Company* (2015) 236 Cal. App. 4th 394. A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract except that the promise is not expressed in words but is implied from the promisor's conduct. *San Mateo Union High School District v. County of San Mateo* (2013) 213 Cal. App. 4th 218.

*Money Lent and Paid.* The elements of a Common Count for money lent are that the defendant is indebted in a certain sum for money loaned by plaintiff and the defendant has not repaid the money lent. *Pleasant vs. Samuels* (1896) 114 Cal. 34. The elements are identical for the Common Count of Money Paid. *Id.*

*Open Book Account.* A book account is a form of common count defined as a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith. *Professional Collection Consultants v. Lujan* (2018) 23 Cal. App. 5th 685, 690-91. A book account is ‘open’ where a balance remains due. *Id.* at 691. The elements are: 1) existence of the principal record of one or more transactions between creditor and debtor; 2) entries in the record that were made in the creditor’s regular course of business; and 3) the record was kept in a reasonably permanent form and manner. CCP § 337a. In deciding whether a book account exists, a court must examine the agreement between the parties and their conduct in the course of their dealings. *Maggio, Inc. v. Neal* (1987) 196 Cal. App. 3d 745, 752.

*Account Stated.* An account stated is ‘an agreement, based on prior transactions between the parties, that the items of an account are true and that the balance struck is due and owing. *Professional Collection Consultants v. Lauron* (2017) 8 Cal. App. 5th 958, 968; *Maggio, Inc. v. Neal, supra*, 196 Cal. App. 3d 745, 753. When an account stated is assented to, either expressly or impliedly, it becomes a new contract. Accordingly, an action on an account stated is not based on the parties’ original transactions, but on the new contract under which the parties have agreed to the balance due. *Professional Collection Consultants v. Lujan, supra*, 23 Cal. App. 5th 685. The elements are: 1) previous transactions between the parties establishing the relationship of debtor and creditor; 2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; 3) a promise by the debtor, express or implied, to pay the amount due. *Zinn v. Fred R. Bright Co.* (1969) 271 Cal. App. 2d 597, 600. When a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered. *Maggio, Inc. v. Neal, supra*, 196 Cal. App. 3d 745, 752.

The facts in this matter are straightforward and uncontested. Plaintiff has met its burden of proving each element of each cause of action and showing that there is no defense. The burden shifts to the Defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. Defendant has not opposed the motion. Defendant has provided no evidence that a triable issue of material fact remains.

The motion is **GRANTED**. Judgment is in favor of the Plaintiff in the amount of \$27,647.96 plus costs in the amount of \$860.00 for a total judgment of \$28,517.96. A proposed order and proposed judgment were lodged with the Court and will be modified to reflect the Court’s final ruling. The trial date of April 21, 2025 is vacated and the file will be closed when judgment is entered.

## **WILSON VS. DESHIELDS**

**Case Number: 24CV-0204481**

**Tentative Ruling on Order to Show Cause Re: Dismissal:** An Order to Show Cause Re: Dismissal issued to Plaintiff Wendy Dedicatoria Wilson for her failure to serve pleadings pursuant to California Rule of Court 3.110(b) and for failure to timely prosecute. The Complaint in this matter was filed on March 11, 2024. Proof of Service of Summons has not been filed. Plaintiff is in violation of CRC 3.110 and the Court has spent considerable time and resources on this matter to gain compliance with a basic Rule of Court. No response to the Order to Show Cause having been filed, and prior sanctions not being effective, the matter is **DISMISSED**.

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### **9:00 a.m. – Review Hearings**

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## **IN RE BARTLETT**

**Case Number: 25PB-0032800**

This matter is on calendar for review regarding status of funding. On February 25, 2025, this Court issued an Order after the February 18, 2025 hearing. The Court directed counsel to file an additional declaration with

evidentiary support for the amounts requested to be paid directly to the minor's mother for medical expenses. Counsel filed a Supplemental and Declaration and supporting evidence on February 27, 2025. The supplemental information appears to be sufficient. However, the proposed order is incomplete, and inconsistent with the approved distribution.

1. Item 8a(2) must include the \$10,190.59 to be paid to the petitioner for reimbursement for medical expenses. (Item 8a(4) relates to third party distributions – the minor's mother is Petitioner, not a third party.)
2. Item 8a refers to an Attachment 8(b)(2). This is improper. The form requires additional payee information to be provided on an Attachment 8a(3) in the same format. Additionally, addresses have not been provided for the payees at items 3(a) and 3(b).
3. Attachment 8(b)(2) directs \$133,549.60 to be paid to Landsem Law Office State Bar Trust Account. It is unclear what payment from the Petition this amount corresponds to.
4. Attachment 8(b)(2) also directs \$105,000 to be paid to Landsem Law Office State Bar Trust Account. It appears appropriate to direct \$4,809.41 to the trust account. However, it is unclear whether this is a client trust account, and if so, why attorney fees would be paid into a client trust account. Generally, an attorney's earned fees may not be deposited into a client trust account (except for small amounts necessary to cover bank charges). Rule of Professional Conduct 1.15(b).
5. The Balance for claimant at Item 8b. does not match the instructions on Attachment 8(b)(2), or the amount stated at Item 15 of the Petition.

An amended proposed order must be lodged. This matter is continued to **Monday, April 7, 2025 at 9:00 a.m. in Department 63** for confirmation of lodging an amended proposed order. That date will be vacated upon the Court's approval of an amended proposed order. **No appearance is necessary on today's calendar.**

**KING, ET AL. VS. TYNER, ET AL.**

**Case Number: 23CV-0202922**

This matter is on calendar for review regarding status of arbitration or dismissal. Plaintiff's Request for Dismissal of the entire action was entered January 17, 2025. This hearing is dropped from calendar. **No appearance is necessary.**

**LEPAGE VS. STEVE MANNING CONSTRUCTION, INC, ET AL.**

**Case Number: 23CV-0201849**

This matter is on calendar for trial setting. Defendants have filed a status report indicating that the parties have met and conferred and agree that a continuance of the trial setting conference is in order to allow time for discovery and deposition, which has been delayed despite the parties' efforts to move the case forward. Defendants request 180 days. Today's review hearing is continued to **Monday, September 8, 2025, at 9:00 a.m. in Department 63** for trial setting. **No appearance is necessary on today's calendar.**

**MCCLURE VS. NASISE, MD, ET AL.**

**Case Number: 24CV-0206369**

This matter is on calendar for review regarding trial setting. The previous trial date was vacated by the Court's order dated January 21, 2025. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than May 5, 2026. Defendant has posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are directed to meet and confer regarding mutually acceptable trial dates prior to the hearing.

**PIERCY, ET AL. VS. MCINTOSH, ET AL.**

**Case Number: 24CV-0204617**

This matter is on calendar for review regarding status of counsel and status of service. Attorney Christopher Wood has filed a Substitution of Attorney to represent Plaintiffs. No proof of service of summons has been filed. No status report has been filed. An appearance is necessary on today's calendar.

**STEVEN, ET AL. VS. PETERSON****Case Number: 24CV-0204537**

This matter is on calendar for review regarding status of judgment/dismissal. Plaintiffs have filed a status conference statement indicating that Plaintiffs have settled with Defendant, and the minor's compromise was approved on October 23, 2024. An Acknowledgement of Receipt of Order and Funds for Deposit in a Blocked Account has been filed. Plaintiffs request a continuance to permit time to negotiate an underinsured motorist claim under their own policy. Today's hearing is continued to **Monday, July 7, 2025, at 9:00 a.m. in Department 63.** No appearance is necessary on today's calendar.

**WHITRED HOLDINGS, LLC, ET AL. VS. THE MCCONNELL FOUNDATION****Case Number: CVCV21-0197415**

This matter is on calendar for review regarding status of interlocutory judgment and further proceedings. The Court is in receipt of the following documents:

- "Proposed Statement of Decision and Proposed Judgment" filed by Defendant on February 4, 2025
- "Plaintiffs' Objections to Proposed Interlocutory Judgment- Sale of Real Property" filed by Plaintiffs on February 24, 2025
- "Plaintiffs' Objections to Proposed Statement of Decision" filed by Plaintiffs on February 24, 2025
- "Proposed Interlocutory Judgment for Partition by Sale" submitted by Plaintiffs on February 24, 2025

Upon full review of these documents and after hearing any oral input from the parties, the Court intends on issuing a final statement of decision and interlocutory judgment. At the review hearing, the parties should be prepared to address whether they believe a hearing on their respective proposals and objections (pursuant to CRC 3.1590(k)) should be set.

**WILSON VS. DESHIELDS****Case Number: 24CV-0204481**

This matter is on calendar for review regarding status of service. The Court notes that it intends to dismiss this action on today's 8:30 a.m. calendar pursuant to an OSC re: Dismissal. Therefore, today's review hearing is dropped from calendar. No appearance is necessary.